Republic of the Philippines
City of Davao
Office of the Sangguniang Panlungsod
20th City Council
Committee Legislative Hearing Draft
Series of 2026

PRESENT:

Vice Mayor J. Melchor B. Quitain Jr.	- Presiding Officer
Councilor Marissa S. Abella	Councilor Louie John J. Bonguyan
Councilor Nilo M. Abellera Jr.	Councilor Pilar C. Braga
Councilor Luna Maria Dominique S. Acosta	Councilor Jonard C. Dayap
Councilor Bernard E. Al-ag	Councilor Edgar P. Ibuyan Jr.
Councilor Wilberto E. Al-ag	Councilor Richlyn N. Justol-Baguilod
Councilor Al Ryan S. Alejandre	Councilor Diosdado Angelo Junior R. Mahipus
Councilor Dante L. Apostol Sr.	Councilor Bonz Andre A. Militar
Councilor Conrado C. Baluran	Councilor Temujin B. Ocampo
Councilor Jessica M. Bonguyan	Councilor Myrna G. L'Dalodo-Ortiz

ABSENT:

Councilor Alberto T. Ungab	- On Official Business
Councilor Lorenzo Benjamin D. Villafuerte	- On Leave

PROPOSED ORDINANCE NO. 2026-03, SERIES OF 2026

Series of 2026

AN ORDINANCE REGULATING INDUSTRIAL AIR EMISSIONS, MANDATING POLLUTION CONTROL MEASURES IN MANUFACTURING AND COMMERCIAL ESTABLISHMENTS, AND PRESCRIBING PENALTIES FOR VIOLATIONS THEREOF IN THE CITY OF DAVAO

Be it ordained by the Sangguniang Panlungsod of Davao City, in session assembled, that:

SECTION 1. TITLE - This Ordinance shall be known and cited as the 'Industrial Air Quality and Emission Regulation Ordinance of Davao City'.

SECTION 2. DECLARATION OF POLICY - In accordance with Section 16 of Republic Act No. 7160 (The Local Government Code of 1991), local government units are mandated to enhance the right of the people to a balanced ecology and promote public health and safety.

It is hereby declared the policy of the City Government of Davao to maintain clean air and regulate stationary sources of air pollution, ensuring that industrial and commercial operations do not discharge harmful smoke, fumes, or particulate matter that endanger the health and welfare of Davao City residents.

SECTION 3. DEFINITION OF TERMS - As used in this Ordinance, the following terms shall mean:

(a) Stationary Source - refers to any industrial plant, factory, boiler, generator, furnace, or commercial facility that emits smoke, gas, or particulate matter into the atmosphere;

(b) Air Pollution - refers to any alteration of the physical, chemical, or biological properties of the atmosphere that endangers health or creates a public nuisance;

(c) Pollution Control Facility - refers to any baghouse filter, electrostatic precipitator, wet scrubber, or cyclone separator designed to reduce industrial air emissions;

(d) Dark Smoke - refers to smoke emissions that equal or exceed Ringelmann Chart density standards for excessive atmospheric obscurity;

(e) Industrial Establishment - refers to factories, mills, batching plants, and processing plants situated within the industrial and commercial zones of Davao City.

SECTION 4. SCOPE AND COVERAGE - This Ordinance shall apply to all industrial plants, manufacturing factories, commercial boiler facilities, and stationary emission sources operating within the territorial jurisdiction of Davao City.

SECTION 5. MANDATORY POLLUTION CONTROL EQUIPMENT - All industrial and commercial establishments operating fuel-burning equipment, boilers, or furnaces shall install, operate, and properly maintain appropriate air pollution control equipment, such as wet scrubbers, dust collectors, or fabric filters, to minimize atmospheric emissions.

Industrial establishments shall be given a period of ninety (90) calendar days from the effectivity of this Ordinance to install or upgrade compliant emission control devices.

SECTION 6. PROHIBITION OF DARK SMOKE AND NOXIOUS FUMES - No industrial or commercial establishment shall cause, allow, or permit the emission of dark smoke, toxic chemical fumes, or noxious particulate matter from any chimney, smoke stack, or exhaust vent in such quantities as to cause a public nuisance or endanger the health of surrounding communities.

All smoke stacks and exhaust vents shall be constructed at a height sufficient to ensure proper atmospheric dispersion as determined by the City Environment and Natural Resources Office (City ENRO).

SECTION 7. PERMIT TO OPERATE AND ANNUAL ENVIRONMENTAL INSPECTION - All industrial establishments covered by this Ordinance must secure an annual Environmental Clearance from the City ENRO prior to the issuance or renewal of their Mayor's Business Permit.

The City ENRO shall conduct regular on-site inspections of stationary emission sources and verify the operational efficiency of all pollution control equipment.

SECTION 8. IMPLEMENTING AGENCY - The City Environment and Natural Resources Office (City ENRO), in coordination with the City Health Office (CHO) and the Department of Environment and Natural Resources (DENR-EMB Region XI), shall be the lead implementing agency of this Ordinance.

City ENRO environmental inspectors are authorized to enter industrial premises during regular operating hours to inspect emission sources and examine pollution control logs.

SECTION 9. NOTICE OF VIOLATION AND CORRECTIVE ORDER - Whenever an inspection reveals that an establishment has discharged excessive smoke or failed to maintain required pollution control equipment, the City ENRO shall issue a written Notice of Violation.

The establishment shall be given fifteen (15) working days to institute corrective engineering measures and submit a compliance report to the City ENRO.

SECTION 10. CEASE AND DESIST ORDER - If an industrial establishment fails to comply with the corrective order within the prescribed period and continues to discharge dangerous air contaminants threatening public health, the City Mayor, upon recommendation of the City ENRO and City Legal Officer, may issue a Cease and Desist Order temporarily suspending the operation of the non-compliant emission source.

SECTION 11. PENALTIES - Any person, factory owner, plant manager, or corporate officer who violates any provision of this Ordinance shall, upon conviction, be punished by a fine of Twenty-Five Thousand Pesos (Php 25,000.00) or imprisonment of three (3) years, or both such fine and imprisonment at the discretion of the court.

In addition to the penal sanctions herein provided, the Mayor's Business Permit of the non-compliant establishment shall be revoked and the facility subject to permanent closure.

SECTION 12. SEPARABILITY CLAUSE - If any provision of this Ordinance or the application thereof to any person or circumstance is held invalid, the remainder of this Ordinance shall not be affected thereby.

SECTION 13. EFFECTIVITY - This Ordinance shall take effect fifteen (15) days after its publication in a newspaper of general circulation in Davao City.

ENACTED on Committee Review, by the Sangguniang Panlungsod of Davao City.

CERTIFIED CORRECT:

CHARITO N. SANTOS
Secretary to the Sangguniang Panlungsod
(City Government Department Head II)

ATTESTED:

J. MELCHOR B. QUITAIN JR.
Vice Mayor
Presiding Officer

APPROVED: _____, 2026

SEBASTIAN Z. DUTERTE
City Mayor

ATTESTED:

ATTY. FRANCIS MARK H. LAYOG
Acting City Administrator